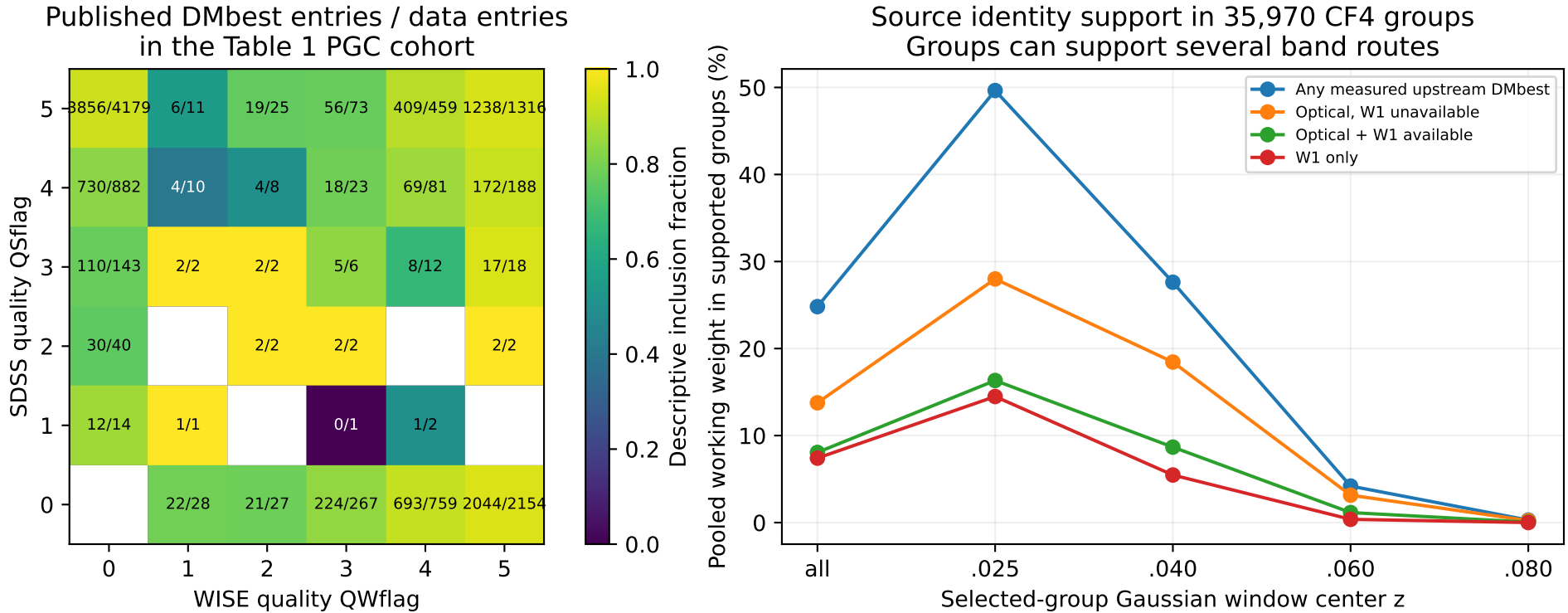actual upstream membership diagnostics — selection law and covariance remain unknown